

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On September 21, 2021, a complaint was filed with the Spanish Agency for Data Protection against BESTIAL EVENTIS, S.L. with NIF B35551977 (hereinafter, the complained party).

The reasons for the complaint are as follows:

It is stated in the complaint that the entity BESTIAL EVENTIS organizes one of the most important obstacle race events in the Canary Islands, called BESTIALRACE, with the participation of hundreds of people, and that on the registration page it requests information on whether the participant has a COVID-19 Vaccination Certificate and, if not, requires the participant to present a PCR or Antigen test in order to participate in the race, understanding that such requests are contrary to data protection regulations. A screenshot is provided showing the question posed to the runners who wish to participate.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 21, 2021, as stated in the certificate in the file.

On November 17, 2021, this Agency received a response letter indicating the following:

“The legal basis for the processing is CONSENT, based on Article 9.2.i of the DATA PROTECTION REGULATION, which establishes:

2. The provision in paragraph 1 shall not apply when one of the following circumstances occurs:

i) the processing is necessary for reasons of public interest in the field of public health, such as the protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union or Member State law that establishes appropriate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy.

The purpose is the registration for the race, specifically in this section, to ensure public health.

The registration forms, as well as the information they contain, are only processed by Bestial Events, whose only employee is me, A.A.A., so I am the only one who has access to it.

Regarding the complaint, the format in the form was changed, and it is established in a first layer “you must present a vaccination certificate or PCR/antigens” and a tab is opened that states “I have been informed of the above” with a selection box.

To provide context, since there was widespread confusion and a tangled regulatory framework that changed day by day, we will explain the chronology:

On August 1, 2021, registration for the race opened, with Gran Canaria on the brink of PHASE 4, declared by the Government of the Canary Islands, which is the maximum alert that could be declared. At that time, a vaccination certificate was required to enter the islands and, even, attempts were made to establish this requirement for entry into bars and restaurants. For the planning of the race, a COVID protocol was developed appropriate to the circumstances we are experiencing, that is, the pandemic situation.

The registration, as has been customary, was managed with the TRACKING SPORT platform. To collect the data, the minimum necessary data was assessed. It should be emphasized that the vaccination section is merely informative, that is, it is only to verify that you know you must present the vaccination certificate and that, if you do not have it, you would need to present a PCR or antigen test 72 hours in advance.

On September 14, 2021, the Supreme Court, Administrative Litigation Chamber, Section Four, in its ruling 1.112/2021, which is attached under document number 3, establishes the appropriateness of the

adopted measure, not perceiving any limitation when the mere exhibition of the document is established, that is, showing or displaying the documentation. Certainly, we do not create a file nor do we process that data.

When a serious and imminent danger to people's lives and the protection of public health arises, it is logical to believe that it is in our hands to do everything possible to try to prevent the spread of the virus, always attending to the

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principles of proportionality and minimization established by our data protection law.

At no time was there any discrimination for not having the COVID-19 vaccination, as not having it is not an impediment. That is to say, alternatives are available, such as presenting a PCR or an antigen test taken 72 hours prior to the race. Moreover, we do not take any action with that data, and it must also be presented when collecting the race number.

In an event with so many people involved - runners, volunteers, workers, etc. - it is understood that the measure taken is the most appropriate to guarantee, as far as possible, public health. At no time is the information used for a purpose other than that collected. We believe that it is, in any case, a measure adjusted to the circumstances we are experiencing. We also have a COVID protocol that establishes the minimum health measures, which is attached under number 4 of the documents. With this, we want to make it clear that what matters most to us is to be able to carry out our activities in a safe manner.

Delving further into the topic, two studies were conducted to assess the need for an impact assessment, one using the tool from the Spanish Agency for Data Protection, which are attached under numbers 5 and 6 of the documents.

Both results were the same. It is not necessary to carry out an IMPACT ASSESSMENT. We do not carry out any processing that may pose a high risk to the rights and freedoms of individuals, nor do we use immature or insecure IT systems.

We do not carry out large-scale processing of any data and, of course, we do not carry out segregations or discriminations.

We take into consideration the assessment criteria established by the European Data Protection Board in its Guidelines on the assessment of impact related to data protection (EIPD) to determine whether the processing "likely entails a high risk" for the purposes of Regulation (EU) 2016/679.

THIRD: On December 21, 2021, in accordance with Article 65 of the LOPDGDD, the complaint submitted was accepted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

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Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them,

subsidiarily by the general rules on administrative procedures."

II

Processing of special categories of personal data

Article 9 of the GDPR, which regulates the processing of special categories of personal data, establishes the following:

"1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply where one of the following applies:

- a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;
- b) the processing is necessary for compliance with a legal obligation and the exercise of specific rights of the data controller or the data subject in the field of employment law and social security and protection, to the extent that it is authorized by Union or Member State law or a collective agreement under the law of Member States that provides adequate safeguards for the respect of fundamental rights and the interests of the data subject;
- c) the processing is necessary to protect the vital interests of the data subject or of another natural person, in the event that the data subject is not physically or legally capable of giving consent;
- d) the processing is carried out, in the context of its legitimate activities and with appropriate safeguards, by a foundation, association, or any other non-profit body whose purpose is political, philosophical, religious, or trade union, provided that the processing relates solely to the current or former members of such bodies or to persons who have regular contact with them in relation to their purposes and provided that the personal data are not disclosed outside of them without the consent of the data subjects;

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- e) the processing relates to personal data that the data subject has made manifestly public;
- f) the processing is necessary for the formulation, exercise, or defense of claims or when courts act in the exercise of their judicial functions;
- g) the processing is necessary for reasons of essential public interest, based on Union law or the law of the Member States, which must be proportional to the objective pursued, respect the right to data protection in essence, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;
- h) the processing is necessary for purposes of preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of health or social care, or management of health and social care systems and services, based on Union law or the law of the Member States or under a contract with a health professional and without prejudice to the conditions and guarantees provided for in paragraph 3;
- i) the processing is necessary for reasons of public interest in the field of public health, such as protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union law or the law of the Member States that establishes adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy;
- j) the processing is necessary for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the law of the Member States, which must be proportional to the objective pursued, respect the right to data protection in essence, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.

3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when their processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union law or the law of the Member States or with the rules established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union law or the law of the Member States or the rules established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data concerning health.

III

Principles relating to processing

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Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

IV

Autonomous regulations

Having studied the "Resolution of July 23, 2021, which provides for the publication of the Agreement approving the update of the preventive measures established by Government Agreement of June 19, 2020, to address the health crisis caused by COVID-19, once Phase III of the Plan for the transition to a new normality has been overcome, and the validity of the measures specific to the state of alarm has ended," published on July 26, 2021, in the Official Bulletin of the Canary Islands (BOC) number 152, reference is made to the following paragraphs:

"[...]

BACKGROUND

[...]

VII.- The scientific committee for the management of the health emergency due to COVID-19, in session no. 46 held on July 19, proposes to the Government the following recommendations:

[...]

Restrict access to interiors allowing it only for vaccinated individuals or those who have recovered from the disease in the indoor spaces mentioned in the minutes.

[...]

VIII.- In accordance with the recommendations of the committee mentioned in the previous section, the Director of the Canary Islands Health Service issues a report dated July 22, indicating that in order to reduce health risks inside hospitality and restoration venues, and as an additional measure to those that are applicable and/or adopted, access control to indoor areas at alert levels 3 and 4 is proposed through a complete vaccination certificate (immunized), negative PDIA in the last 72 hours, or past infection.

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LEGAL GROUNDS

[...]

Second

[...]

In the current legal framework, the pillars that support the adoption of measures to protect public health against contagious diseases are constituted by Organic Law 3/1986, of April 14, on Special Measures in Public Health, Law 14/1986, of April 25, General Health Law, and Law 33/2011, of October 4, General Public Health Law.

[...]

Taking the above into account, and considering the proposals made by the Scientific Committee and the Ministry of Health, the Government, after deliberation, agrees:

First.- Object.

To approve the measures for updating the Government Agreement of June 19, 2020, in the terms of the annex to this Agreement.

This update refers to the following sections:

[...]

4) Section 3.2 "Hospitality and restaurant activities."

5) Section 3.7 "Cultural activities in cinemas, theaters, auditoriums, and stable public cultural spaces."

6) Section 3.13.2 "Practice of non-federated physical and sports activities outdoors and in sports facilities and centers."

7) Section 3.19 "Gaming and betting establishments and venues."

[...]

Sixth.- Effects.

This Agreement will take effect from the day of its publication in the Official Bulletin of the Canary Islands and will remain in force as long as the declaration of health crisis caused by COVID-19 persists.

[...]

ANNEX

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3.13.2 NON-FEDERATED physical and sports activity in INDOOR AREAS of sports facilities and centers

ALERT LEVEL 4

[...]

Capacity exclusively for those users who hold the COVID-19 Certificate, with a complete vaccination schedule (immunized), a negative Active Infection Diagnostic Test (PDIA: "self-diagnostic tests" are not included) performed in the last 72 hours, or certify that they have overcome the infection in the last six months.

Although the measures regarding the presentation of evidence related to the COVID situation for entry into certain types of establishments contained in the Resolution of July 23, 2021, were suspended by the High Court of Justice of the Canary Islands, subsequent regulations have been published that have implemented measures similar to those outlined. Thus, for example, the Order of November 29, 2021, published in BOC number 250, of December 9, 2021, contains the following paragraphs:

"LEGAL GROUNDS

[...] Third.- When addressing the criteria for affecting and limiting fundamental rights, we must necessarily refer to the doctrine established by the Supreme Court in its Judgment No. 1112/2021, of September 14, 2021, Administrative Litigation Chamber, Section Four, among others. This Judgment sets the legal parameters to be evaluated by stating the following:

"[...] Ultimately, the right to the protection of personal data aims to guarantee individuals control over their own data, deciding on its use and destination to prevent its illicit trafficking. The holder is granted the power to oppose its use, without their consent, for purposes other than those that justified its acquisition. Thus, through the regulation of data protection, the dangers and risks posed by the

indiscriminate storage and use of any type of computer data are combated.

Well, regarding this fundamental right to data protection, no limitation is perceived when what is established for entering the interior of a specific establishment is merely the exhibition, that is, showing or displaying the documentation in any of the three required modalities. [...]"

[...] I RESOLVE:

First.- In centers, facilities, activities, or public use spaces whose managers voluntarily choose to require their workers and users over 12 years and 3 months to provide accreditation, also voluntary, of absence of active COVID-19 infection, the capacities, number of people per group, and closing times in effect at each moment for each activity and space at the immediately lower alert level than that existing on the corresponding island will apply. In the event that the existing alert level is 1, there will be no...

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the application of capacity limitations, number of people per group, and closing hours in effect at any given time for that level.

The voluntary accreditation of the absence of active infection will be carried out by presenting the negative result of a diagnostic test for active COVID-19 infection, conducted in a legally authorized laboratory no more than 48 hours prior, with self-diagnostic tests not being acceptable. This accreditation may be replaced, at the option of the interested party, either by the voluntary accreditation of vaccination against this disease by presenting an official certificate of having received the complete vaccination schedule in accordance with the provisions of the Vaccination Strategy against COVID-19 in Spain, starting from 14 days after the date of administration of the last dose of the complete vaccination schedule, or by the voluntary accreditation of having had the disease between 11 and 180 days prior, by presenting an official certificate.

Second.- This Order will be subject to judicial ratification by the Administrative Litigation Chamber of the Superior Court of Justice of the Canary Islands, in accordance with the provisions of Article 10.8 of Law 29/1998, of July 13, regulating Administrative Litigation Jurisdiction, the measures contained in this Order.

Third.- This Order is temporary in nature, its effectiveness will be conditioned upon ratification by the Superior Court of Justice of the Canary Islands, producing effects in the event of judicial ratification from the day following its publication in the Official Bulletin of the Canary Islands. It will last until January 15, 2022, if applicable, without prejudice to the possibility of a new extension depending on the evolution of the epidemiological situation."

The Order of November 29, 2021, was ratified by Order 219/2021 "for a period of one month to be counted from the day following its publication in the Official Bulletin of the Canary Islands, and in any case, with a maximum validity until January 15, 2022, being necessary in case of extension to request new judicial authorization."

V

Established Facts

Article 4 of the GDPR, under the heading "Definitions," provides the following:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not."

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whether or not automated, such as collection, recording, organization, structuring, conservation, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, suppression or destruction.”

7) “data controller” or “controller”: the natural or legal person, public authority, service or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.”

Thus, a first aspect to clarify is whether we have confirmed the processing of data by the respondent party, the promoter of the sporting event in question.

In the document submitted by the respondent party, it indicates that it was relying on the Resolution of July 23, 2021. In that resolution, it is indeed established that access to certain sports activities will require the presentation of certifications or accreditations related to the personal situation regarding Covid vaccination or the test indicating that one is not infected at a given moment.

The application of the aforementioned measure was suspended by the High Court of Justice of the Canary Islands and ultimately became ineffective by virtue of the Government Agreement of September 2, 2021, which nullified the Government Agreement of June 19, 2020, which established the preventive measures to address the health crisis caused by COVID-19, once Phase III of the plan for the transition to a new normality was surpassed, following the end of the validity of the measures specific to the state of alarm and its successive updates, published by Resolution of the General Secretariat of the Presidency of the Government on September 6, 2021 (BOC No. 183, of 06.09.2021).

V

Conclusion

Article 27 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, enshrines the principle of legality in the field of the sanctioning power of the Administration, as it prescribes that only violations of the legal order provided as such by a law constitute administrative infractions.

According to the doctrine of the Constitutional Court, the principles inspiring criminal law apply, with certain nuances, to administrative sanctioning law, given that both are manifestations of the punitive order of the State, as reflected in the Constitution itself in its article 25, which imposes the necessity of the normative predetermination of infringing behaviors and the corresponding sanctions, allowing for the prediction with a sufficient degree of certainty (*lex certa*) of those behaviors and knowing what to expect regarding the associated liability and the eventual sanction, with a precise correlation between.

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the unlawful act and the action attributed, through a correct and adequate subsumption of the proven facts into the applicable sanctioning type.

In accordance with the principles of sanctioning administrative law, it is necessary for a series of elements to be present in order to understand that an administrative infringement has occurred. First, for administrative liability to exist, it is necessary that the person being accused has carried out an action or omission. If this conduct, whether active or omitted, is regulated in the administrative norms as an infringement, then it will be granted such nature. Furthermore, the principle of responsibility requires that the alleged responsible party has carried out the conduct in a culpable or fraudulent manner, with the first case being one in which the actions are conscious and voluntary, and the culpable being those that are involuntary but result in a breach of the norm. Another essential element of administrative infringements is the effect of time, as only those behaviors that are typified as infringements at the time of their commission can be punished.

In the present case analyzed, even though the identity of the responsible party and the supposedly

unlawful act has been established, there is no evidence that the latter has occurred affecting the claimant, as no treatment of their personal data has been carried out.

Therefore, based on what has been indicated in the previous paragraphs, no evidence has been found that supports the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, as it has not been confirmed that any data processing of the claimant has taken place in any of the areas affected by the measures set forth in the Resolution of July 23, 2021, which provides for the publication of the Agreement approving the update of the preventive measures established by the Government Agreement of June 19, 2020, to address the health crisis caused by COVID-19, once Phase III of the Plan for the transition to a new normality has been completed, ending the validity of the measures specific to the state of alarm.

Thus, in accordance with what has been stated, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to BESTIAL EVENTIS, S.L., and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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